



Ethics and Professional Practice in Game Design: A South African Perspective

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Part One: Ethics and Design

Defining Ethics in Game Design

Ethics in the gaming industry encompasses moral responsibilities that game designers and publishing outlets bear towards the well-being of players, society, brand integrity, and the environment. Unlike traditional design disciplines, game designers wield unique power to shape player behaviour, emotional states, and cognitive patterns due to the medium's unique interactivity (Flanagan and Nissenbaum, 2014; Mann, 2020). Haug (2016, p.656) argues that design ethics involves "the capability to recognise ethical dimensions of design projects and to act accordingly", meaning that designers should look past commercial objectives and instead prioritise societal sustainability and impact. For game designers, this extends to respecting player autonomy, ensuring fair monetisation practices, fostering inclusive representation, protecting personal data, and maintaining eco-friendly practices - like reduced heat emission and processing power for playing higher-end games (Sicart, 2009; Mann, 2020). Ethics in game design is profoundly practical, as every design choice, from game difficulty to microtransactions, carries moral weight that affects both the financial and mental well-being of real-world people (Zagal et al., 2013).

Monetisation Ethics and Player Manipulation

The most contentious ethical battleground in modern game design revolves around monetisation systems that exploit psychological vulnerabilities. Referred to as "Dark Patterns" or "Dark Gamification" (Mann, 2020), more nefarious game design studios deliberately use manipulative interfaces that trick players into taking unintended actions. They are disproportionately higher featured in free-to-play mobile games (Gray et al., 2018). These patterns include false scarcity timers, fake discounts to cover excessive price hikes, currency distancing by using fake in-game money (like "V-Bucks" or "Gems"), and "pay-to-win" mechanics that create unfair competitive advantages for wealthier players (Zagal et al., 2013; Mann, 2020). Lange and Hanekom (2015) argue that communication and game designers must recognise their power to shape behaviour and accept accountability for deploying manipulative tactics that prioritise profit.

Electronic Arts Sports' (EA) FIFA Ultimate Team perfectly demonstrates unethical monetisation on an industrial scale. Spinning loot boxes as "surprise mechanics", these predatory design decisions generate EA over R31 billion annually, clearly paralleling gambling in that players (unregulated for young children) pay real money for a chance to win a random reward (Drummond et al., 2020; Mann, 2020). Belgium and the Netherlands banned FIFA loot boxes as illegal gambling, yet EA continued defending practices that research shows particularly target minors, gambling addicts,

and the financially vulnerable (King and Delfabbro, 2018). One UK student reported spending his entire university savings, approximately R960,000, on FIFA Packs (BBC News, 2020). Furthermore, industry giant Epic Games' Fortnite faced over R9 billion in fines from the US Federal Trade Commission for deploying Dark Patterns specifically targeting children without parental consent (Federal Trade Commission, 2022).

Conversely, ethical monetisation models demonstrate commercial viability without exploitation. *Stardew Valley* (ConcernedApe, 2016), developed by solo creator Eric Barone, uses traditional premium pricing (approximately R250 to R400) with free content updates, avoiding pay-to-win mechanics entirely while achieving massive commercial success (Schreier, 2016). *Path of Exile* (Grinding Gear Games, 2013) demonstrates that free-to-play games can monetise ethically through cosmetic-only purchases that don't affect the balancing or difficulty of the game (Alexander, 2019). For South African developers targeting local markets where mobile gaming dominates, these models offer ethical frameworks that respect the economic constraints many African players face (Iqoqo, 2023).

Representation, Diversity, and Cultural Sensitivity

Historically, some renowned games, such as *Assassin's Creed Shadows* (Ubisoft, 2025) and *Resident Evil 5* (Capcom, 2009), marginalised diverse identities and reinforced harmful racial stereotypes, thereby doing a disservice to authentic and accurate representation (Shaw, 2014). For South African designers, this ethical dimension carries particular urgency given the nation's colonial history and ongoing struggles with representation.

Research from the University of the Witwatersrand reveals that South African game design education tends to reproduce "Northern styles" rather than authentically retelling African narratives (Hall, 2018, p.14). Cape Town's gaming powerhouse Free Lives, which created hits like *Broforce* (2015) and *Anger Foot* (2024), represents South Africa's most commercially successful developer. However, they have been critiqued repeatedly for mimicking Western themes rather than exploring local cultural contexts (Hall, 2018). The dominance of white males in South Africa's gaming industry reflects broader accessibility issues across racial and economic divides (Hall, 2018).

University of Johannesburg research explores the complex ethics of creating war games based on real African conflicts, questioning how designers represent issues like Somali women's roles in the Ogaden War, highlighting the responsibility designers bear when depicting real historical trauma (Rohleder, 2022). Lange and Hanekom (2015) emphasise that designers cannot abdicate responsibility by claiming merely to fulfil client requests; we remain accountable for perpetuating or challenging harmful cultural narratives through our creative labour.

Ethical alternatives exist internationally. *Baldur's Gate 3* and *The Last of Us Part II* feature diverse characters with extensive customisation for gender identity and sexual orientation, allowing players to see themselves authentically represented (Shaw, 2014; Sarkeesian, 2020). African studios like Cameroon's Kiro'o Games create games and comics based on African-Fantasy, offering culturally authentic representation rather than reproducing Western narratives (Kiro'o Games, 2021). South African developers possess unique opportunities to create games expressing indigenous languages, cultural practices, and historical perspectives, addressing the representation gap whilst contributing commercially viable products to global markets (Iqoqo, 2023).

Accessibility and Inclusion

Approximately 31% of US gamers and 29% of UK gamers experience disabilities, yet many games exclude these players through inaccessible design (AbleGamers, 2020). Haug (2016, p.659) argues that ethical designers must recognise the social implications of their work, including the responsibility to design for universal access rather than treating accessibility as optional.

Naughty Dog's *The Last of Us Part II* established the accessibility gold standard with over 60 customisable settings addressing vision, hearing, and motor disabilities (Naughty Dog, 2020). Features include text-to-speech narration, high-contrast visual modes, full control remapping, and navigation assistance. Crucially, Naughty Dog collaborated with accessibility consultants including blind players, ensuring features genuinely served disabled communities rather than representing tokenistic gestures (Naughty Dog, 2020). This commitment required additional development resources but expanded the game's audience whilst demonstrating corporate social responsibility.

Celeste, an indie platformer, includes "Assist Mode" allowing players to adjust game speed, enable invincibility, modify stamina, and customise difficulty parameters without judgement or achievement penalties (Thorson, 2018). Developer Noel Berry noted these features required merely "a couple of days' work" to implement, demonstrating that accessibility need not impose prohibitive costs, particularly for smaller studios (Thorson, 2018). For South African developers operating with limited budgets, *Celeste* proves ethical accessibility practices remain achievable, potentially bridging the digital divide affecting marginalised South African communities (Hall, 2018).

AI, Copyright, and Intellectual Property

Artificial intelligence in game development raises profound ethical questions regarding authorship, copyright infringement, and artist exploitation (Belam, 2023). Cases like *Andersen v. Stability AI* highlight how AI models trained on copyrighted

artwork without permission generate outputs resembling original works, creating legal and ethical risks for developers using AI-generated assets (Thaler, 2023).

US Copyright Office rulings determined that AI-generated content lacks sufficient human authorship for copyright protection, meaning game assets created purely by AI cannot be copyrighted, creating vulnerability for developers relying heavily on generative AI (US Copyright Office, 2023). For South African developers, these concerns intersect with local copyright law and the need to protect intellectual property in emerging markets. Lange and Hanekom (2015) emphasise that designers bear responsibility for the origins of their creative materials; using AI trained on stolen artwork makes designers complicit in intellectual property theft regardless of technological intermediation.

Ethical AI use requires treating AI as a creative tool rather than an autonomous generator, ensuring substantial human creative input throughout the process (Sicart, 2009). Developers must source training data responsibly, maintain transparency about AI use, and credit human artists appropriately (Belam, 2023). South African studios can establish ethical AI practices from inception, avoiding the exploitative patterns that plague international industries.

Data Protection and POPIA Compliance

Games collect vast personal data, creating legal and ethical obligations to protect player privacy. South Africa's Protection of Personal Information Act (POPIA), fully enforceable since 2021, establishes eight conditions including accountability, security safeguards, and transparency about data processing (Republic of South Africa, 2013).

South African game developers must appoint Information Officers, conduct data protection impact assessments, and implement transparent consent mechanisms, particularly critical given documented concerns about manipulation in digital design (Republic of South Africa, 2013). POPIA parallels the EU's GDPR, requiring explicit player consent before collecting personal data, clear explanations of data use, and robust security measures protecting against breaches. For studios developing free-to-play games that monetise through targeted advertising or data analytics, POPIA compliance isn't optional but legally mandated, with substantial penalties for violations (Information Regulator South Africa, 2021). Haug (2016, p.661) argues that ethical designers must recognise their responsibility extends beyond aesthetic or functional considerations to encompass legal and moral obligations to protect user data, treating privacy as fundamental right rather than regulatory burden.

Workplace Ethics: Crunch Culture

Game developers frequently endure "crunch", unpaid overtime of 65-80 hours weekly, harming physical health, mental wellbeing, and ultimately product quality

(Schreier, 2017). Industry surveys reveal 40% of developers experience crunch, with only 8% receiving compensation (IGDA, 2019). The International Game Developers Association defines crunch as violating multiple ethical frameworks: it lacks compassion (virtue ethics), denies workers their due (justice ethics), and treats employees as disposable resources (Kantian ethics) (IGDA, 2019).

Cyberpunk 2077's troubled development exemplifies how rushed production damages both worker wellbeing and product reputation, resulting in game recalls and corporate embarrassment (Schreier, 2020). However, successful games can be created without exploitative practices, as studios prioritising sustainable workflows demonstrate (IGDA, 2019). South African developers, building the industry from early stages, possess unique opportunities to establish ethical workplace standards rather than inheriting international AAA studios' exploitative practices (Hall, 2018). Given South Africa's progressive labour laws, local studios can lead by example, creating sustainable work environments that attract and retain talent.

Environmental Sustainability

Game development and play consume significant energy and resources, creating environmental responsibilities for designers (Abraham and Jayemanne, 2017). Ethical approaches include optimising code for reduced CPU usage and power consumption, prioritising digital distribution to minimise physical production, and using recycled materials when physical components remain necessary (Abraham and Jayemanne, 2017).

Microsoft's Gaming Sustainability Initiative provides Xbox developers with tools for measuring energy consumption and carbon emissions, helping create energy-efficient games (Microsoft, 2022). Educational games like *Wildmender* partner with environmental organisations, teaching sustainability through gameplay whilst minimising ecological footprints (Wildmender, 2023). For South African developers, environmental ethics carry particular urgency given climate change's disproportionate impacts on African nations. Local studios can lead by creating games that both minimise environmental harm and educate players about sustainability, contributing to broader climate action movements whilst demonstrating the social responsibility Haug (2016, p.662) identifies as central to ethical design practice.

Part Two: Personal Application

Operational Integration of Ethical Practices

As an emerging South African game designer, I will integrate ethics operationally throughout my development workflow, from initial concept through post-launch support. During pre-production, I will conduct ethical impact assessments for all proposed features, explicitly evaluating how mechanics affect player autonomy, wellbeing, and financial security. This assessment will employ frameworks from Haug's (2016) educational model, systematically analysing whether design decisions respect player agency or exploit psychological vulnerabilities.

For monetisation, I will establish clear ethical boundaries: no obfuscated pricing through multiple currencies, no time-pressure purchases exploiting fear-of-missing-out, and no gameplay advantages purchasable with real money. Instead, I will adopt the *Stardew Valley* model of fair pricing (approximately R250-R350 for premium titles) or *Path of Exile*'s cosmetic-only free-to-play approach, ensuring all players access complete gameplay experiences regardless of spending capacity (Alexander, 2019; Schreier, 2016).

Accessibility will be non-negotiable from initial prototyping. Following *Celeste*'s example, I will implement difficulty customisation, control remapping, and visual/audio adjustments early in development, when integration costs remain minimal, rather than retroactively attempting accessibility (Thorson, 2018). I will engage disabled South African gamers as consultants, ensuring features genuinely serve communities rather than representing performative inclusion.

For representation, I will actively pursue authentically African narratives, consulting cultural experts and community members to avoid stereotypical or exploitative depictions. My projects will prioritise hiring diverse team members, recognising that authentic representation requires diverse creative voices throughout development, addressing Hall's (2018, p.14) critique of South African game design's reproduction of "Northern styles."

POPIA compliance will be foundational, not afterthought (Republic of South Africa, 2013). I will implement privacy-by-design principles, collecting only data essential for gameplay whilst providing transparent explanations of usage. All data practices will exceed minimum legal requirements, building player trust through demonstrated respect for privacy.

Workplace practices will prioritise sustainability. I will establish realistic schedules acknowledging that crunch produces inferior products whilst harming team wellbeing (Schreier, 2017). If operating independently, I will model healthy work-life balance; if leading teams, I will institutionalise anti-crunch policies protecting staff mental health.

Addressing Ethical Dilemmas

Inevitably, clients or publishers will request designs conflicting with my ethical principles. When facing such dilemmas, I will employ Lange and Hanekom's (2015) framework recognising designers' accountability for outcomes, not merely processes. If clients demand exploitative monetisation, such as loot boxes targeting children or pay-to-win mechanics, I will first educate them about ethical alternatives demonstrating commercial viability, presenting case studies like *Path of Exile's* success through ethical free-to-play models generating substantial revenue (over R700 million annually) without exploiting players (Alexander, 2019).

If education fails, I will propose compromise solutions respecting both commercial goals and ethical boundaries. For example, if clients insist on microtransactions, I will advocate for cosmetic-only purchases or "battle pass" systems providing transparent value rather than randomised gambling mechanics (Zagal et al., 2013).

Should clients demand unsustainable production processes, such as excessive plastic packaging or energy-intensive physical distributions, I will present data demonstrating digital distribution's cost-effectiveness alongside environmental benefits, framing sustainability as financially advantageous rather than purely moral concern (Abraham and Jayemanne, 2017). For South African contexts, I will emphasise how sustainable practices align with national climate commitments and growing consumer environmental consciousness.

Ultimately, if clients refuse ethical alternatives, I will decline projects. Haug (2016, p.657) emphasises that ethical designers must recognise their moral agency, accepting that some commercial opportunities demand unacceptable compromises. Lange and Hanekom (2015) argue designers cannot abdicate responsibility by claiming "the client demanded it", we remain accountable for amplifying harmful practices through our creative labour. Building a portfolio of ethically sound work will attract like-minded clients whilst establishing a professional reputation grounded in integrity rather than exploitation.

For South African game designers entering an emerging industry, establishing ethical foundations now prevents normalising exploitative practices that plague international AAA studios. By prioritising player wellbeing, authentic representation, accessibility, data protection, sustainable workplaces, and environmental responsibility, we can build a South African game industry distinguished by ethical leadership rather than colonial reproduction. As Haug (2016, p.663) argues, educating ethical designers requires cultivating not merely technical competence but moral consciousness, recognising that design decisions shape lives, cultures, and futures, demanding designers exercise power with wisdom, compassion, and accountability.

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